

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 915

Introduced by Lippincott, 34; Hallstrom, 1; Lonowski, 33; McKeon, 41.

Read first time January 09, 2026

Committee:

- 1 A BILL FOR AN ACT relating to the Municipal Inland Port Authority Act; to
- 2 amend section 13-3304, Revised Statutes Cumulative Supplement, 2024;
- 3 to change the number of inland port districts that may be created;
- 4 and to repeal the original section.
- 5 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** Section 13-3304, Revised Statutes Cumulative Supplement,
2 2024, is amended to read:

3 13-3304 (1) Any city which encompasses an area greater than three
4 hundred acres eligible to be designated as an inland port district may
5 propose to create an inland port authority by ordinance, subject to the
6 cap on the total number of inland port districts provided in subsection
7 (4) of this section. In determining whether to propose the creation of an
8 inland port authority, the city shall consider the following criteria:

9 (a) The desirability and economic feasibility of locating an inland
10 port district within the corporate boundaries, extraterritorial zoning
11 jurisdiction, or both of the city;

12 (b) The technical and economic capability of the city and any other
13 public and private entities to plan and carry out development within the
14 proposed inland port district;

15 (c) The strategic location of the proposed inland port district in
16 proximity to existing and potential transportation infrastructure that is
17 conducive to facilitating regional, national, and international trade and
18 the businesses and facilities that promote and complement such trade;

19 (d) The potential impact that development of the proposed inland
20 port district will have on the immediate area; and

21 (e) The regional and statewide economic impact of development of the
22 proposed inland port district.

23 (2) Any city and one or more counties in which a city of the
24 metropolitan class, city of the primary class, or city of the first class
25 is located, or in which the extraterritorial zoning jurisdiction of such
26 city is located, which encompass an area greater than three hundred acres
27 eligible to be designated as an inland port district may enter into an
28 agreement pursuant to the Interlocal Cooperation Act to propose joint
29 creation of an inland port authority, subject to the cap on the total
30 number of inland port districts provided in subsection (4) of this
31 section. In determining whether to propose the creation of an inland port

1 authority, the city and counties shall consider the following criteria:

2 (a) The desirability and economic feasibility of locating an inland
3 port district within the corporate boundaries or extraterritorial zoning
4 jurisdiction or both of the city, or within both the corporate boundaries
5 or extraterritorial zoning jurisdiction or both of a city and the
6 boundaries of one or more counties;

7 (b) The technical and economic capability of the city and county or
8 counties and any other public and private entities to plan and carry out
9 development within the proposed inland port district;

10 (c) The strategic location of the proposed inland port district in
11 proximity to existing and potential transportation infrastructure that is
12 conducive to facilitating regional, national, and international trade and
13 the businesses and facilities that promote and complement such trade;

14 (d) The potential impact that development of the proposed inland
15 port district will have on the immediate area; and

16 (e) The regional and statewide economic impact of development of the
17 proposed inland port district.

18 (3) Any county with a population greater than twenty thousand
19 inhabitants according to the most recent federal census or the most
20 recent revised certified count by the United States Bureau of the Census
21 which encompasses an area greater than three hundred acres eligible to be
22 designated as an inland port district may propose to create an inland
23 port authority by resolution, subject to the cap on the total number of
24 inland port districts provided in subsection (4) of this section. In
25 determining whether to propose the creation of an inland port authority,
26 the county shall consider the following criteria:

27 (a) The desirability and economic feasibility of locating an inland
28 port district within the county;

29 (b) The technical and economic capability of the county and any
30 other public or private entities to plan and carry out development within
31 the proposed inland port district;

1 (c) The strategic location of the proposed inland port district in
2 proximity to existing and potential transportation infrastructure that is
3 conducive to facilitating regional, national, and international trade and
4 the businesses and facilities that promote and complement such trade;

5 (d) The potential impact that development of the proposed inland
6 port district will have on the immediate area; and

7 (e) The regional and statewide economic impact of development of the
8 proposed inland port district.

9 (4) No more than six ~~five~~ inland port districts may be designated
10 statewide. No more than one inland port district may be designated within
11 the boundaries of a city of the metropolitan class. No inland port
12 authority shall designate more than one inland port district, and no
13 inland port authority may be created without also designating an inland
14 port district.

15 (5) Following the adoption of an ordinance, resolution, or execution
16 of an agreement pursuant to the Interlocal Cooperation Act proposing
17 creation of an inland port authority, the city clerk or county clerk
18 shall transmit a copy of such ordinance, resolution, or agreement to the
19 Department of Economic Development along with an application for approval
20 of the proposal. Upon receipt of such ordinance, resolution, or agreement
21 and application, the department shall evaluate the proposed inland port
22 authority to determine whether the proposal meets the criteria in
23 subsection (1), (2), or (3) of this section, whichever is applicable, as
24 well as any prioritization criteria developed by the department. Upon a
25 determination that the proposed inland port authority sufficiently meets
26 such criteria, the Director of Economic Development shall certify to the
27 city clerk or county clerk whether the proposed creation of such inland
28 port authority exceeds the cap on the total number of inland port
29 districts pursuant to subsection (4) of this section. If the department
30 determines that the proposed inland port authority sufficiently meets
31 such criteria and does not exceed such cap, the inland port authority

1 shall be deemed created. If the proposed inland port authority does not
2 sufficiently meet such criteria or exceeds such cap, the city shall
3 repeal such ordinance, the county shall repeal such resolution, or the
4 city and county or counties shall rescind such agreement and the proposed
5 inland port authority shall not be created.

6 **Sec. 2.** Original section 13-3304, Revised Statutes Cumulative
7 Supplement, 2024, is repealed.